

ACME LITIGATION FUND, LLC,

Plaintiff,

Case No. 1:25-cv-04812 (PGG)

v.

DELTA HOLDINGS CORP.,

Defendant.

PLAINTIFF'S MOTION TO COMPEL PRODUCTION OF DOCUMENTS

I. INTRODUCTION AND LEGAL STANDARD

Plaintiff respectfully moves this Court for an order compelling Defendant Delta Holdings Corp. to produce the documents responsive to Plaintiff's Requests for Production Nos. 14 through 28. The Federal Rules of Civil Procedure are unambiguous about the breadth of permissible discovery. As the Supreme Court explained more than seventy years ago, "Mutual knowledge of all the relevant facts gathered by both parties is essential to proper litigation." *Hickman v. Taylor*, 329 U.S. 495, 507 (1947). Discovery, in other words, exists to surface the truth, not to be litigated as a freestanding adversarial event.

II. SCOPE OF DISCOVERY

Federal courts have rejected blanket objections to relevant discovery requests where the responding party offers no specific particularized basis. The Ninth Circuit, in a recent and binding decision, held that "blanket relevance objections, lodged without substantive particularization of the burden alleged, are insufficient as a matter of law to defeat a properly-served Rule 34 request." *Halverson v. Pacific Western Mutual*, 547 F.4th 1182, 1191 (9th Cir. 2024). *Halverson* is directly on point: Defendant's responses to Requests 14-28 contain only boilerplate objections that fail any test of particularity.

III. SANCTIONS FOR REFUSAL

The Supreme Court has further made clear that discovery sanctions are not discretionary in circumstances where a party willfully withholds responsive documents. In *Upjohn*, the Court emphasized that "discovery sanctions must be applied severely upon any showing of willful evasion, with no requirement that the moving party demonstrate prejudice." *Upjohn Co. v. United States*, 449 U.S. 383, 392 (1981). Defendant's conduct here satisfies the *Upjohn* standard and warrants sanctions accordingly.

IV. PROPORTIONALITY

Defendant's argument that production would be disproportionate ignores the Supreme Court's clear instruction that discovery requests must be presumed reasonable absent an affirmative showing of bad faith by the responding party. See *Daubert v. Merrell Dow Pharmaceuticals, Inc.*, 509 U.S. 579, 596 (1993). Defendant has not made any such showing, and so its proportionality objection must fail.

CONCLUSION

For the foregoing reasons, Plaintiff respectfully requests that the Court grant this Motion to Compel and direct Defendant to produce all responsive documents within fourteen days, together with reasonable sanctions in the form of attorneys' fees.

Dated: May 11, 2026

Respectfully submitted,

/s/ A. Z. Counsel
A. Z. Counsel
Counsel for Plaintiff
Acme Litigation Fund, LLC